

**Superior Court of the State of California
County of Orange**

TENTATIVE RULINGS FOR DEPARTMENT C21

JUDGE CRAIG E. ARTHUR

Date: September 18, 2026

The court will endeavor to post tentative rulings on the Court's website by 4:00 p.m. on the day before the Law and Motion Calendar. However, ongoing proceedings may prevent posting by that time. Please do not call the department for tentative rulings if none are posted. The court will not entertain a request for continuance once a tentative ruling has been posted and no additional papers will be considered once a tentative ruling has been posted.

If all parties agree to submit on the Court's tentative rulings, please call the Court Clerk to inform the court that all parties submit on the Court's tentative ruling (657-622-5221). The tentative ruling will then become the order of the Court.

The Law and Motion Calendar is typically heard on Fridays at 10 a.m., unless otherwise noted. All arguments will be heard at that time. Unless otherwise indicated in the tentative ruling, the prevailing party will give Notice of Ruling. If no one appears for the hearing, the court shall determine whether the matter is taken off calendar or whether the tentative ruling shall become the final ruling.

APPEARANCES: The Court offers remote appearances for the Law and Motion Calendar via Zoom. All counsel and self-represented parties appearing remotely for the Law and Motion Calendar must check-in online through the Court's website at <https://www.occourts.org/civil-remote-hearings>, and then click on Department C21 (to check-in). The Court's "Civil Desktop Remote Appearance Video," an instructional video, is available through the Court's website at [Civil Desktop Remote Appearance Video](#), and the Court's "Civil Mobile Application Remote Appearance Video" is available through the Court's website at [Civil Mobile Application Remote Appearance Video](#). If you encounter difficulty checking-in online or connecting remotely, please call Department C21 for assistance at (657) 622-5221. Counsel and self-represented parties preferring to appear in-person may do so.

COURT REPORTERS: Official court reporters (i.e. court reporters employed by the Court) are NOT typically provided for law and motion matters in this department. Please see the Court's website for further information. The Court's policy on privately-retained court reporters is available on the Court's website at: [Privately-Retained Court Reporter Policy](#).

No filming, broadcasting, photography, or electronic recording is permitted of the video session pursuant to California Rules of Court, rule 1.150 and Orange County Superior Court rule 180.

#	Case Name	Tentative
50	<i>Brown vs. Ditmer</i>	The unopposed motion by Prospective Intervenor Permanent General Assurance Corporation/The General Insurance Company (“Insurance Company”) for leave to intervene pursuant to Code of Civil Procedure section 387, subdivision (d) is CONTINUED. As an initial matter, Insurance Company’s proof of service did not include the server’s email address. (Code Civ. Proc., § 1013b, subd. (b)(1).) No opposition was filed. Plaintiff submitted a stipulation to advance the hearing on this motion and represented the motion was unopposed. The Court reminds the parties of their obligation to comply with CCP section 1013b when electronically serving documents. Intervention is the procedure whereby a nonparty to an action may become a party by requesting leave of court to either join the plaintiff in claiming what is sought by the complaint or to unite with the defendant in resisting the plaintiff’s claims; or to demand anything adverse to both parties. (Code Civ. Proc. § 387, subd. (b).) Intervention is either permissive or mandatory. Mandatory intervention applies if: (A) A provision of law confers an unconditional right to intervene. (B) The person seeking intervention claims an interest relating to the property or transaction that is the subject of the action and that person is so situated that the disposition of the action may impair or impede that person’s ability to protect

	that interest, unless that person’s interest is adequately represented by one or more of the existing parties. (Code Civ. Proc., § 387, subd. (d)(1).) In addition, the Court “may, upon timely application, permit a nonparty to intervene in the action or proceeding if the person has an interest in the matter in litigation, or in the success of either of the parties, or an interest against both.” (Code Civ. Proc., § 387, subd. (d)(2).) “Pursuant to section 387 the trial court has discretion to permit a nonparty to intervene where the following factors are met: (1) the proper procedures have been followed; (2) the nonparty has a direct and immediate interest in the action; (3) the intervention will not enlarge the issues in the litigation; and (4) the reasons for the intervention outweigh any opposition by the parties presently in the action.” (<i>Reliance Ins. Co. v. Superior Court</i> (2000) 84 Cal.App.4th 383, 386.) Whether intervention should be allowed in a particular case “is best determined by a consideration of the facts of that case” and the decision is ordinarily left to the sound discretion of the trial court. (<i>Fireman’s Fund Ins. Co. v. Gerlach</i> (1976) 56 Cal.App.3d 299, 302.) Section 387 is to be construed liberally in favor of intervention. (<i>City of Malibu v. California Coastal Comm.</i> (2005) 128 Cal.App.4th 897, 906.) Intervention will not be allowed when it would retard the principal suit, or require a reopening of
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	the case for further evidence, or delay the trial of the action, or change the position of the original parties. (<i>Simpson Redwood Co. v. State of California</i> (1987) 196 Cal.App.3d 1192, 1202.) A motion or application for leave to intervene must include a copy of the proposed complaint or answer in intervention. (Code Civ. Proc. § 387, subd. (c); see, <i>Sutter Health Uninsured Pricing Cases</i> (2009) 171 Cal.App.4th 495, 513 [affirming denial of leave to intervene where proposed intervenor did not submit proposed complaint in intervention.]) Insurance Company did not show whether Insurance Company admitted coverage for the alleged incident or denied coverage and refused to provide a defense. (<i>Gray v. Begley</i>, 182 Cal.App.4th 1509, 1522.) In addition, Insurance Company did not submit a proposed answer in intervention. Instead, Insurance Company submitted a proposed answer by Defendant Jonathan Ditmer, who already filed an answer on May 22, 2026. (Mann Decl., ¶¶ 4-5, Exhibit D.) Accordingly, the hearing on this motion is continued to October 30, 2026, at 10:00 AM in Department C21. No later than September 29, 2026, Insurance Company shall serve and file: (1) a declaration stating whether coverage is admitted or denied, whether defense will be provided to Defendant Jonathan Ditmer; and (2) a proposed answer in intervention by Insurance Company.
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		Insurance Company shall give notice.
51	<i>Creditors Adjustment Bureau, Inc. vs. Innovations Roofing Inc.</i>	Plaintiff Creditors Adjustment Bureau, Inc.’s motion to strike the answer filed on behalf of defendant Innovations Roofing, Inc. is granted with 45 days leave to amend. [ROA #14.] <i>Facts</i> This is a collection action for money allegedly owed to Plaintiff’s assignor from Defendant Innovations Roofing Inc. [Complaint (ROA #2).] An answer was filed on behalf of Defendant by its owner, Jesus Osorio. [ROA #9.] <i>Legal Standard</i> The court may, upon a motion made pursuant to Section 435, or at any time in its discretion, and upon terms it deems proper, strike “any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.” Code Civ. Proc. § 436(b). A corporation can only appear in an action through counsel. (<i>CLD Construction, Inc. v. City of San Ramon</i> (2004) 120 Cal.App.4th 1141, 1145 [“A corporation has the capacity to bring a lawsuit because it has all the powers of a natural person in carrying out its business. (§ 17; Corp.Code, §§ 105, 207.) However, under a long-standing common law rule of procedure, a corporation, unlike a natural person, cannot represent itself before courts of record in propria persona, nor can it represent itself through a corporate officer, director or other employee who

		is not an attorney. It must be represented by licensed counsel in proceedings before courts of record.”); <i>Merco Constr. Engineers, Inc. v. Municipal Court</i> (1978) 21 Cal.3d 724, 730; <i>Caressa Camille, Inc. v. Alcoholic Beverage Control Appeals Bd.</i> (2002) 99 Cal.App.4th 1094, 1101.] A corporate defendant unwilling to retain counsel “risks forfeiture of its rights.” (<i>Thomas G. Ferruzzo, Inc. v. Superior Court</i> (1980) 104 Cal.App.3d 501, 504.) <i>Discussion</i> Here, the answer filed on behalf of Defendant was not filed in accordance with the laws of this state because it was not filed by a lawyer representing Defendant, a corporation. Accordingly, the motion to strike is granted – with leave to amend to give Defendant an opportunity to obtain counsel. (<i>CLD Construction, Inc. v. City of San Ramon</i>, 120 Cal.App.4th at 1149) [“[W]e are persuaded it is more appropriate and just to treat a corporation's failure to be represented by an attorney as a defect that may be corrected, on such terms as are just in the sound discretion of the court.”] Plaintiff is to provide notice.
52	<i>G vs. Arora</i>	The hearing on Plaintiff Jayden Gober’s Motion to Terminate Appointment of Guardian Ad Litem is continued to 10/30/2026 at 10:00 AM in Department C21. Plaintiff seeks a formal order terminating the appointment of a guardian ad litem and to

		substitute his name in the pleadings. The Court notes that the guardianship terminated by operation of law once Plaintiff was no longer a “minor.” (Fam. Code, § 6500; Prob. Code, § 1600.) Thus, the Court construes this motion and the relief requested therein as a motion for leave to amend the complaint. (See Code Civ. Proc., § 473 [“The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading or proceeding by adding or striking out the name of any party”].) The deemed motion to amend the complaint is granted. Plaintiff is ordered to submit a proposed amended pleading with his proposed amendments by 10/05/26. The Clerk shall give notice of the continuance.
53	<i>Hager vs. Askari</i>	<i>No tentative ruling.</i>
54	<i>Jhumra vs. Orange County Global Medical Center, Inc.</i>	Before the Court are three Demurrers by Defendants Micheline Ghurabi M.D., Onechang W. Lee M.D., Hamed Farid M.D., and a Joinder by Defendant CEP America California (DOE 29). Each Demurrer challenges the sixth cause of action in Plaintiffs Khusro Jhumra’s First Amended Complaint (FAC). A demurrer presents an issue of law regarding the sufficiency of the allegations set forth in the complaint. (<i>Lambert v. Carneghi</i> (2008) 158 Cal.App.4th 1120, 1126.) The challenge is limited to the “four corners” of the pleading (which includes exhibits attached and incorporated

	therein) or from matters outside the pleading which are judicially noticeable under Evidence Code §§ 451 or 452. Although California courts take a liberal view of inartfully drawn complaints, it remains essential that a complaint set forth the actionable facts relied upon with sufficient precision to inform the defendant of what plaintiff is complaining, and what remedies are being sought. (<i>Leek v. Cooper</i> (2011) 194 Cal.App.4th 399, 413.) Welfare & Institutions Code section 15610.07 defines abuse of an elder as: (1) Physical abuse, neglect, abandonment, isolation, abduction, or other treatment with resulting physical harm or pain or mental suffering. (2) The deprivation by a care custodian of goods or services that are necessary to avoid physical harm or mental suffering. (3) Financial abuse, as defined in Section 15610.30. Neglect “requires a caretaking or custodial relationship that arises where an elder or dependent adult depends on another for the provision of some or all of his or her fundamental needs.” (<i>Winn v. Pioneer Med. Group, Inc.</i> (2016) 63 C4th 148, 160.) Health care providers who engage in “simple professional negligence” are not subject to the heightened remedies available under Welf. & Inst. C. § 15657 (general damages, attorney fees
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and costs). (*Covenant Care, Inc. v. Super. Ct.* (2004) 32 Cal.4th 771, 781, 784; *Carter v. Prime Healthcare Paradise Valley LLC* (2011) 198 Cal.App.4th 396, 405; *Worsham v. O'Connor Hosp.* (2014) 226 Cal.App.4th 331, 337.)

In the FAC, Plaintiffs allege that on 7/14/24, Plaintiff Khusro Jhumra presented to the Emergency Department at Orange County Global Medical Center. While receiving treatment, it was discovered that he “had a ruptured left middle cerebral artery aneurysm that resulted in a moderate mass effect and midline shift of 1.2 cm – a bona fide emergency.” Plaintiffs allege that Defendants failed to timely treat Plaintiff’s condition - because they did not have the necessary equipment or a neurosurgeon on call - resulting in severe and permanent brain injury. (FAC, ¶ 14.)

As pertinent here, “neglect” under the Act “means ... [t]he negligent failure of any person having the care or custody of an elder ... to exercise that degree of care that a reasonable person in a like position would exercise.” (Welfare & Inst. Code § 15610.57, subd. (a)(1).) By its plain text, this definition has two components—namely, (1) a negligent failure to exercise reasonable care (2) by a person having care or custody of the elder.

The Act does not define the second, “care or custody” component of neglect, but the Supreme Court has held that it requires “a robust caretaking or custodial relationship ... where [the defendant] has assumed a significant measure of responsibility for attending to one or more of [the]

	elder's basic needs that an able-bodied and fully competent adult would ordinarily be capable of managing without assistance.” (<i>Winn v. Pioneer Medical Group, Inc.</i> (2016) 63 Cal.4th 148, 157-158; <i>see also Oroville Hospital v. Superior Court</i> (2022) 74 Cal.App.5th 382, 404-405; <i>Frankland v. Etehad</i> (2025) 113 Cal.App.5th 503, 514.) The Court finds that Plaintiff has failed to state a claim for “neglect” under the Act against Defendants. It is clear from reading the FAC that despite Plaintiffs’ allegations in ¶¶ 62 and 63 that Plaintiff was a “dependent adult”, Plaintiffs’ claims are based on medical negligence against on-call doctors for allegedly delayed surgery as to Defendants Lee M.D. and Farid M.D. (See FAC ¶¶68-69.) The claims of neglect against Ghurabi M.D. stem from not transferring him to another hospital when the on-call doctors did not timely arrive. (FAC, ¶70.) Specifically, Plaintiffs’ claims regarding his visit to the Emergency Department due to a brain aneurysm do not support a “substantial caretaking or custodial relationship,” but rather potential medical negligence. (See <i>Winn v. Pioneer Medical Group, Inc.</i> (2016) 63 Cal.4th 148, 152.) The Court in <i>Winn</i> stated “nothing in the legislative history suggests that the Legislature intended the Act to apply whenever a doctor treats any elderly patient. Reading the act in such a manner would radically transform medical malpractice liability to the existing scheme.” (<i>Id.</i> at 163)
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		In addition, Plaintiff has failed to allege neglect under the statute. Rather, Plaintiff alleges that Defendants delayed his brain surgery. (FAC, ¶¶67, 68.) Failing to timely secure or undertake brain surgery is not neglect; it is a “basic need” of the type an able-bodied and fully competent adult would ordinarily be capable of managing on his or her own. This is the second time that Plaintiffs have attempted to unsuccessfully plead an elder abuse claim. Plaintiffs do not allege anything beyond a single day of treatment at the Emergency Department of a hospital. Under these facts, it does not seem likely that Plaintiff can plead a valid elder abuse claim. Therefore, the Demurrers are sustained without leave to amend. he Motions to strike attorney’s fees under Welfare and Institutions Code section 15657 as to the sixth cause of action are now moot. Moving Defendants shall serve notice. Defendants shall answer the remainder of the FAC within 15 days.
55	<i>Knutsen vs. Knutsen</i>	The demurrer of defendant Darrell Wade Knutsen, individually and as co-trustee of the 2004 Knutsen Family Trust, to the complaint of plaintiff Julianne Marie Knutsen, individually and as co-trustee of the 2004 Knutsen Family Trust is continued to November 20, 2026, at 10:00 AM in Department C-21 so that Plaintiff may respond to the new arguments raised by Defendant in his reply. [ROA #14, 2.]

		The parties should also address <i>Miranda v. Miranda</i> (1947) 81 Cal.App.2d 61 and <i>Nazzisi v. Nazzisi</i> (1962) 203 Cal.App.2d 121. Plaintiff may file a supplemental opposition in the time provided by the Code and CRC 3.1113(d); similarly, Defendant may file a further reply in the time provided by the Code and CRC 3.1113(d). Defendant is to provide notice.
56	<i>Marcos vs. Nissan North America, Inc.</i>	<i>No tentative ruling.</i>
57	<i>Off Calendar</i>	
58	<i>Waterfall Bridge Capital, LLC vs. LA Golf Partners LLC</i>	Before the Court is Plaintiff Waterfall Bridge Capital LLC and Receiver Carl Petta request for an order issuing Receiver's Certificates in the amount of \$250,000.00 and for the Receiver's Certificates to be given super-priority status. Receivers are sometimes appointed to preserve property that does not produce income or produces insufficient income to provide for preservation and management of the property in the receivership estate. In such situations, provisions must be made for obtaining funds to pay the receiver and preserve the property. This is usually accomplished by the receiver asking for court permission so that the estate may borrow specific sums of money and explain how that should be effected. (<i>See City of Sierra Madre v. SunTrust Mortgage, Inc.</i> (2019) 32 Cal. App. 5th 648.)

	With court authorization, a receiver may be authorized to issue receivership certificates as security for cash loaned to the receivership estate. (<i>See Title Ins. & Trust Co. v. California Development Co.</i> (1915) 171 Cal. 227, 229–231.) Receivership certificates are then issued as evidence of the indebtedness and become liens on the subject property when issued under the direction and control of the court, usually with priority over all other liens, including preexisting liens. (<i>City of Sierra Madre v. SunTrust Mortgage, Inc.</i> (2019) 32 Cal. App. 5th 648, 659-661, 668 (citing text).) Whether receiver's certificates should be issued, and whether those certificates when issued should be given priority over the other indebtedness already of record against the property, are decisions that rest largely in the discretion of the court, although it has been stated that the use of super-priority liens should be infrequent because the disturbance of pre-existing liens may bring harsh consequences. (<i>City of Sierra Madre v. SunTrust Mortgage, Inc.</i> (2019) 32 Cal. App. 5th 648, 659-661, 668 (citing text).) The terms of the proposed loan are as follows: • Lender – Plaintiff Waterfall Bridge Capital, LLC • Loan Amount - \$250,000.00 • Interest – 12 percent • Loan Fee – \$5,000.00, plus all costs
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	• Collateral – Lender’s Collateral, fully described in Exhibit “A” to the Declaration of Carl Petta. The Receiver provides a declaration in support of this Motion detailing the bills/fees at issue: • \$954.88 - TPx Communications: Current telecommunications charges due July 31, 2026. • \$2,227.81 - Everon: Building security services for both business locations. • \$3,200 - Shopify: Website services. • \$5,200 - Mesa Cold: Storage of cold prepreg materials. • \$5,220 - Forward Financing: Estimated loan repayments of approximately \$1,305 per week for the following four weeks. • \$10,440 - Forward Financing: Financing payments of \$2,610 per week for eight weeks. • \$22,175- Forward Financing: Financing payments of \$4,435 per week until the outstanding balance is paid. • \$17,240 - Forward Financing: Financing payments of \$4,435 per week until the outstanding balance is paid. • \$21,740 - Jay Komoff (La Palma Landlord): Rent for the period from July 7 through September 7, 2026.’=
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		• \$1,075.68 - Farmers Insurance: Monthly insurance premium. • \$40,944.04 - PAC Finance 1, LLC (Prologis): Amount payable under the access agreement for the Hunter location, calculated at a daily rate of \$1,346.11, plus utilities. • \$275.00 - QuickBooks (LA Golf Shafts): monthly accounting software subscription fee. • \$115.00 - QuickBooks (LA Golf Partners): Monthly accounting software subscription fee. • \$503 - Gorgias: past-due customer service platform fee. • \$503 Gorgias: monthly customer service platform fee • TBD- Expensify: business expense-management services; amount not specified. • TBD - US Patents and Trademarks: renewal payments • TBD - California Department of Tax and Fee Administration: Amount associated with a California seller's permit that was referred for collection in July 2026. • \$4,000 - Orange County: Past-due unsecured property tax obligation.
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		• TBD - EIN: Past-due annual tax payments for LA Golf Partners, LA Golf Group, and Matrix • \$25,000 - Kaulig Group: Payment demanded and due on July • \$15,000 - MBL Tech: Cloud storage, data backup, and security services Receiver Petta testifies that he needs this money to discharge his Court-ordered duties. (Petta Decl., ¶6.) He also details what the money will be used for, including payments on other loans, rent for LA Golf, and money to apparently keep LA Golf in business. (Petta Decl., ¶¶4-9 and <i>supra</i>.) The Court questions whether these amounts are reasonably necessary to maintain the Collateral, i.e. personal property owned by the business and requests that Plaintiff and Mr. Petta come to Court prepared to discuss this issue. Defendants have not appeared in this case, and defaults have not been entered. Further, while the California Supreme Court long ago concluded a court may authorize a receiver to issue a super-priority lien in appropriate circumstances (<i>City of Sierra Madre v. SunTrust Mortgage, Inc.</i> (2019) 32 Cal.App.5th 648, 659), the rate of \$12% interest may be excessive if super-priority is given. Plaintiff and Mr. Petta shall come to Court prepared to discuss this issue as well.
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